

Mohamad Aslam v. State of U.P. & 2 Ors.

Allahabad High Court · Division Bench · 4 February 2015 · Criminal Misc. Writ Petition No. 3002 of 2015 · **Writ petition disposed of; prayer to quash FIR refused, but arrest (if any) directed to comply with s.41(1)(b)/41-A Cr.P.C. safeguards, with compounding remedy left open under the Supply Code/s.152**

HEADNOTE

Companion order to Mobin Ahamad v. State of U.P. (SCJ-081), decided the same day by the same Bench, on materially identical facts: a petition to quash an FIR under Section 135 of the Electricity Act, 2003 (theft of electricity, Case Crime No. 34 of 2014, same police station) is refused since the FIR discloses a cognizable offence, but arrest (if effectuated, given the offence would not entail more than 7 years' imprisonment) must comply with Cr.P.C. s.41(1)(b)/41-A, and any compounding remedy lies under the Electricity Supply Code, 2005 and Section 152 of the Act.

HOLDING-UNITS

INTERPLAY · EA2003::135

Companion ruling to SCJ-081 (Mobin Ahamad) — identical holding on a parallel FIR from the same investigation

HOLDING

As in SCJ-081: the FIR discloses a cognizable offence and is not quashed; any arrest must comply with Cr.P.C. s.41(1)(b)/41-A since the offence would not entail more than 7 years' imprisonment; a compoundable offence's remedy lies under the Supply Code, 2005 and s.152 of the Act. ¶ [unnumbered order](#)

LIMITING FACTS

FIR registered as Case Crime No. 34 of 2014 under s.135 of the Electricity Act, 2003 at P.S. Mughalsarai, District Chandauli — a companion FIR to the one in SCJ-081, arising from the same investigation, same date, same Bench.

FLAG Near-verbatim companion order to SCJ-081; recorded compactly to avoid duplicating the identical reasoning.

PRINCIPLE TAGS

[s135-arrest-safeguards-and-compounding-remedy](#) Companion application of the same principle as SCJ-081.

¶ [unnumbered order](#)